

Calendar Lines 1-4

Case Name: *Envirodigm, Inc. v. Apple, Inc.*

Case No.: 20CV373138

The tentative ruling is provided to the parties only and will remain under seal.

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Case Name: *Salinas, et al. v. Giuliani Construction and Restoration, Inc.*

Case No.: 23CV428291

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiffs Guadalupe Salinas, Guadalupe Ramos Marquez, and Jose Antonio Ramirez Vecerra (collectively, “Plaintiffs”) allege defendant Giuliani Construction and Restoration, Inc. committed various wage and hour violations.

Before the Court is Defendant’s motion to enforce settlement, which is opposed. For reasons discussed below, the Court GRANTS Defendant’s motion to enforce the settlements and DENIES the request to dismiss the class and PAGA claims.

I. BACKGROUND

According to the allegations of the operative second amended complaint (“SAC”), Defendant failed to: provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; maintain accurate payroll statements; provide complete and accurate wage statements; pay wages (overtime and minimum wages); pay sick wages; pay wages due upon termination; and reimburse for necessary business expenses.

On December 28, 2023, Plaintiff Salinas initiated this action with the filing of the Complaint and on September 10, 2024, Plaintiff Salinas filed the first amended complaint, which asserted the following causes of action: (1) PAGA penalties; (2) Failure to Pay Wages-Unpaid Commissions (Lab. Code §§ 204, 1194, 1194.2, and 1197); (3) Failure to Timely Pay Final Wages at Termination (Lab. Code §§ 201-203); (4) Failure to Provide Accurate Itemized Wage Statements (Lab. Code § 226); (5) Failure to Indemnify Employees for Expenditures (Lab. Code § 2802); (6) Unfair Business Practices (Bus. & Prof. Code §§ 17200, *et seq.*); and (7) Breach of Contract.

On October 29, 2025, Plaintiffs filed the operative SAC, which asserts the following causes of action: (1) Failure to Pay Minimum Wages (Lab. Code §§ 204, 1194, 1194.2, and 1197); (2) Failure to Pay Overtime Compensation (Lab. Code §§ 1194 and 1198); (3) Failure to Provide Meal Periods (Lab. Code §§ 226.7, 512); (4) Failure to Authorize and Permit Rest Breaks (Lab. Code §§ 226.7); (5) Failure to Indemnify Necessary Business Expenses (Lab. Code § 2802); (6) Failure to Timely Pay Final Wages at Termination (Lab. Code §§ 201-203); (7) Failure to Provide Accurate Itemized Wage Statements (Lab. Code § 226); (8) Unfair Business Practices (Bus. & Prof. Code §§ 17200, *et seq.*); (9) Civil Penalties Under PAGA (Cal. Lab. Code § 2698, *et seq.*); (10) Failure to Pay Wages – Unpaid Commissions (Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197); (11) Failure to Timely Pay Final Wages at Termination (Cal. Lab. Code §§ 201-203); (12) Failure to Provide Accurate Itemized Wage Statements (Cal. Lab. Code § 226); (13) Failure to Indemnify Employees for Expenditures (Cal. Lab. Code § 2802); (14) Unfair Business Practices (Cal. Bus. & Prof. Code §§ 17200, *et seq.*); and (15) Breach of Contract.

Plaintiffs Ramos Marquez and Ramirez assert causes of action one through eight on a class basis; Plaintiffs Salinas and Ramirez assert the ninth cause of action for PAGA penalties; Plaintiff Salinas individually asserts causes of action ten through fifteen. On April 15, 2026,